

Ravendar @ Jhabbu v. State of U.P. and Another

High Court of Judicature at Allahabad · Division Bench · 31 May 2022 · Writ - C No. 4641 of 2022 · **Writ disposed; liberty to file clause 6.8 objection; coercive action stayed.**

HEADNOTE

Without examining the merits of a distribution licensee's demand, the High Court disposed of the writ by relegating the consumer to an objection under paragraph 6.8 of the U.P. Electricity Supply Code, 2005, directing a time-bound hearing and staying coercive recovery in the interim.

FACTUAL SUMMARY

Ravendar @ Jhabbu petitioned the Allahabad High Court to quash a 15 July 2020 order of the Power Distribution Corporation and an undated letter issued against him. The writ sought certiorari in respect of that demand. Counsel for the distribution licensee stated on instructions that the petitioner could file an objection to the impugned demand, which would then be decided in accordance with law within a time-bound period. The Court heard counsel for the petitioner, the State, and the licensee.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

objection to demand as alternate remedy

HOLDING

Without expressing any opinion on merits, the writ is disposed of with liberty to the petitioner to submit an objection under Para 6.8 of the U.P. Electricity Supply Code, 2005 before the distribution licensee within four weeks; if so submitted, the objection shall be decided in accordance with law within the next four weeks after a reasonable opportunity of hearing; no coercive action shall be taken on the impugned demand for eight weeks or until disposal of the objection, whichever is earlier. ¶ 1

PRINCIPLE TAGS

para-6.8-objection-alternate-remedy Writ against the licensee's demand was disposed without merits, with liberty to object under Para 6.8. ¶ 1

fresh-objection-under-clause-6.8 Petitioner given four weeks to submit a fresh Para 6.8 objection; licensee to decide within four weeks after hearing. ¶ 1

assessment-6.8-alternate-remedy Challenge to the impugned demand was remitted to the statutory Para 6.8 objection route rather than decided on the writ. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE IMPUGNED DEMAND DATED 15.07.2020 AND THE UNDATED LETTER
Court expressly declined to express any opinion on the merits of the petitioner's case. ¶ 1